

Court No. - 21

Case :- WRIT - C No. - 6170 of 2024

Petitioner :- Rambabu

Respondent :- State Of Up And 3 Others

Counsel for Petitioner :- Jyotsna Srivastava, Shriya Raje

Counsel for Respondent :- C.S.C., Jai Krishna Upadhyay

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Kshitij Shailendra, J.

1. Learned counsel for respondent-Electricity Department prays for and is granted time to seek instructions from the respondents as from the documents produced before us, it does not appear that any date was fixed in the matter for hearing before final assessment

2. List as fresh on 14.03.2024.

3. Till then, no coercive action shall be taken against the petitioner.

Order Date :- 26.2.2024

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(Kshitij Shailendra, J.) (Manoj Kumar Gupta, J.)

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Hon'ble Manoj Kumar Gupta, J.

Hon'ble Kshitij Shailendra, J.

1. Learned counsel for respondent-Electricity Department, prays for and is granted three days further time to complete his instructions.

2. List as fresh on 22.3.2024.

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, J.)

Order Date :- 14.3.2024

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Hon'ble Manoj Kumar Gupta, J.

Hon'ble Kshitij Shailendra, J.

1. The petitioner has challenged the recovery citation dated 08.01.2023 issued by respondent no.4 for recovery of electricity dues.
2. Shri Gaurav Pratap Singh holding brief of Shri Jai Krishna Upadhyay, learned counsel appearing for the Dakshinanchal Vidyut Vitran Nigam Limited has placed on record the communication received by him from the concerned Executive Engineer stating that he has sent a letter date 20.03.2024 for returning the recovery certificate.
3. Learned counsel for the petitioner submits that liberty be granted to the respondent-Corporation to pass fresh order after providing opportunity of hearing to the petitioner.
4. In view of the above, the petition is **disposed of** with liberty to the concerned Executive Engineer to proceed afresh strictly in accordance with the procedure prescribed under Clause 6.8 of the U.P. Electricity Supply Code, 2005.

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, J.)

Order Date :- 22.3.2024

Ankit.